

Environmental Requirements and Responsibilities

SEAPOWER THROUGH ENGINEERING

TOPIC LEARNING OBJECTIVES

Upon successful completion of this topic, the student will be able to:

1. Identify key Federal and DoW policies governing environmental, safety and occupational health issues.
2. Recognize the requirement for effective safety and health programs for every defense acquisition program.
3. Identify the information required for a milestone review regarding environmental, safety and health issues.
4. Identify the scope of the major Federal environmental regulations.
    a. Identify the National Environmental Policy Act (NEPA) process and identify all possible outcomes of the process for a major federal action.

STUDENT PREPARATION

Student Support Material

1. None

Primary References

1. OPNAVINST 5090.1, Environmental and Natural Resources Program (SEP 2019)*being updated
2. OPNAV M-5090.1, Environmental Readiness Program Manual (JUN 2021)* being updated

Overview

- National Environmental Policy Act (NEPA)
- ESOH Laws and Regulations
- DoW Policies and Requirements

What's New with NEPA?

- DOW NEPA Implementation Update
- EO 14154 - *Unleashing American Energy*
  - Directed CEQ to:
    - Rescind NEPA regulations – 40 CFR part 1500
    - Provide new implementation guidance to agencies.
  - CEQ Action:
    - Rescinded CEQ's NEPA regulations* effective April 11,2025
    - Agencies instructed to:
      - Repeal existing CFR NEPA rules
      - Develop agency specific NEPA procedures

What's New with NEPA?

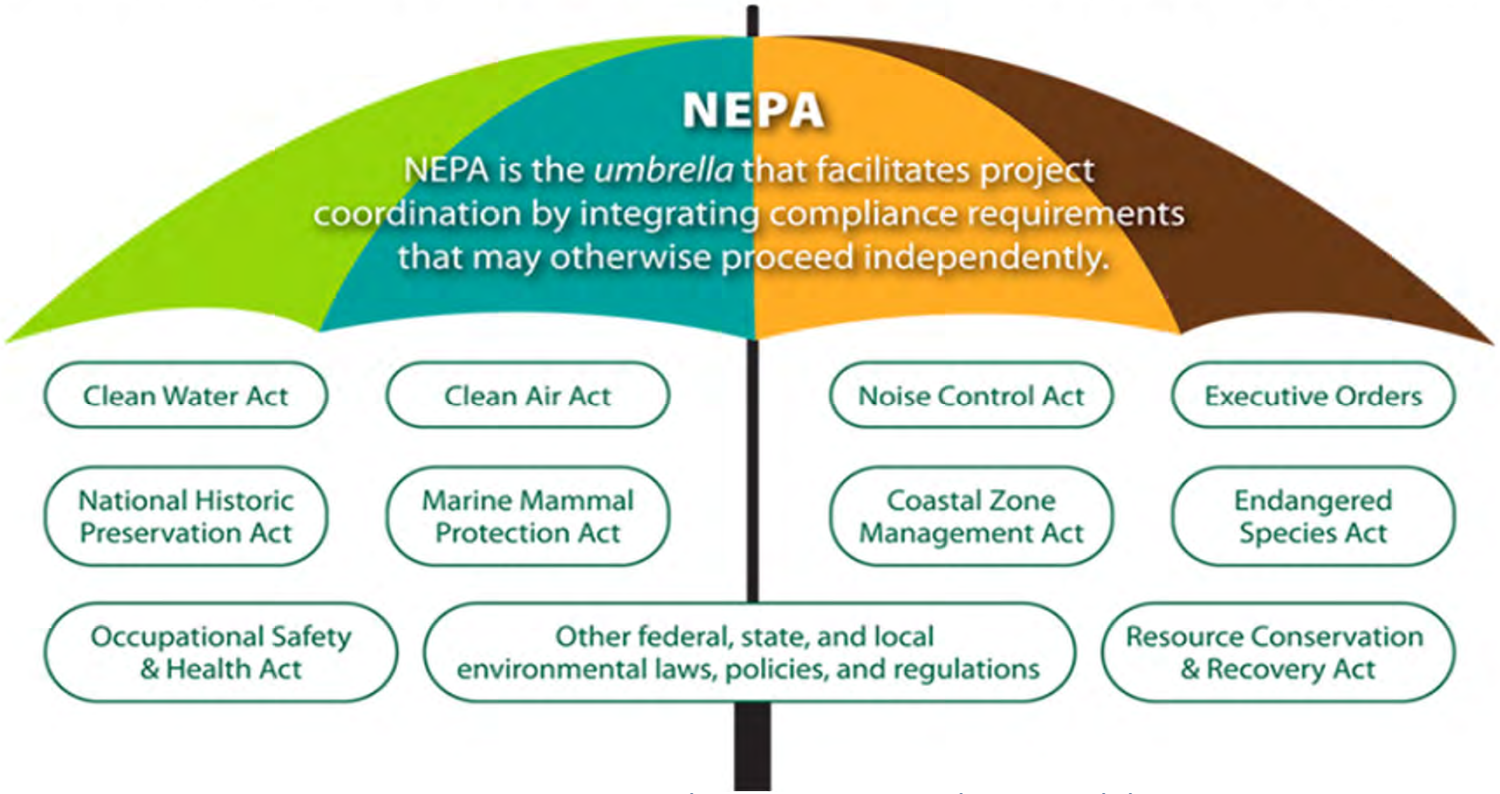
- DOW NEPA Implementation
  - Developed and released new NEPA procedures, aligned with CEQ's updated guidance on June 30, 2025, for:
    - All DoW Components and US Army Corps of Engineers Civil Works
  - Purpose & Scope:
    - Establish standardized NEPA compliance procedures
    - Ensure consistency across DoW
    - Provide clear guidance for implementation & documentation

What's New with NEPA?

- Repeal of Component NEPA regulations
  - As of June 30, 2025, all DoW Component NEPA regs in CFR were repealed
  - Replaced by enterprise-wide DOW NEPA procedures
  - New procedures:
    - No substantive changes to NEPA review process
    - Maintain continuity in NEPA compliance:
      - DOW NEPA Implementing Procedures
      - DOW NEPA Implementing Procedures: Appendix A
  - DoN will develop instruction/guidance/manual supplementing DoW procedures - *TBD timeline

NEPA is Procedural

- Established action-forcing procedures
- Federal agencies must *consider* the environmental effects of their actions
- Environmental considerations must be part of decision-making



National Environmental Policy Act (NEPA)

- For "any **major federal action** *significantly* affecting the *quality* of the *Human Environment*" NEPA requires the DoW to:
  - Consider the environment in its decisions
  - Inform and involve the public in that process
  - Seek less environmentally damaging ways to accomplish the mission or operation
  - Support informed decisions with quality documents
  - PMs should design the system in such a way as to minimize any negative impact on human health and the environment
- DoW policy requires the PM of each systems acquisition program to prepare a NEPA Compliance Schedule
- DoN – NEPA triggered construction, training, exercises, equipment testing

The NEPA Compliance Schedule is required as part of the PESHE, and should be integrated into the overall program schedule

Types of Actions Not Subject to NEPA Review

- Specific statutory exemptions
- No physical impact on the environment (e.g., purely economic)
- Agency has no discretion to act (e.g., BRAC-directed closure)
- Functionally-equivalent exemptions (e.g., CERCLA/Superfund)
- Agency budgets and appropriation requests
- No ability to prevent an impact due to limited statutory authority

Classified actions are not exempt (NEPA provides mechanisms for classified annexes exempt for public participation *See* Weinberger v. Catholic Action of Hawaii / Peace Educ. Project, 454 U.S. 139 (1981))

When NEPA review is NOT required

- DOW NEPA review is ***not*** required if:
  - No final agency action is involved
  - The action is exempted by law
  - NEPA conflicts with other legal requirements
  - Congress limits DoW discretion by statute
  - Another law satisfies NEPA requirements
  - The action is not a major Federal action
  - Federal involvement or funding is minimal
  - Issuance of DOD NEPA procedures itself

- DoW focuses on the specific action or project at hand

Determining the level of NEPA Review

- Process for deciding NEPA review level:
  - Check for existing categorical exclusions (CATEXs):
    - Apply DoW's or another agency's CATEX if it fits the proposed action
    - Consider creating or revising CATEX if needed
  - If no CATEX applies:
    - Evaluate the action's reasonably foreseeable effects
    - If effects are not likely significant or unknown, prepare an Environmental Assessment (EA)
    - If effects are likely significant, prepare an Environmental Impact Statement (EIS)

DoW as Single Federal Agency for NEPA CATEX

- Key Point:
  - The Department of War (DoW), including all its components, is considered a single “Federal Agency” under NEPA’s CATEX provisions
  - This applies regardless of which DoW component originally established or adopted the CATEX

Examples of Other Laws, Statutes, and Executive Orders Typically Integrated with the NEPA Process

- Rivers and Harbors Act of 1899
- The Wild and Scenic Rivers Act
- Clean Water Act
- Safe Drinking Water Act
- Coastal Zone Management Act
- Clean Air Act
- Magnuson Stevens Fishery Conservation and Management Act
- Endangered Species Act
- Bald and Golden Eagle Protection Act
- Migratory Bird Treaty Act
- Protection of Wetlands (EO 11990)
- Floodplain Management (EO 11988)
- Farmland Protection Policy Act
- Protection of Children from Environmental Health Risks and Safety Risks (EO 13045)
- National Historic Preservation Act
- Archaeological Resources Protection Act of 1970
- Native American Graves Protection and Repatriation Act
- American Indian Religious Freedom Act
- Toxic Substances Control Act
- Resource Conservation and Recovery Act
- Comprehensive Environmental Response, Compensation, and Liability Act (Superfund)

Overlapping Requirements with NEPA

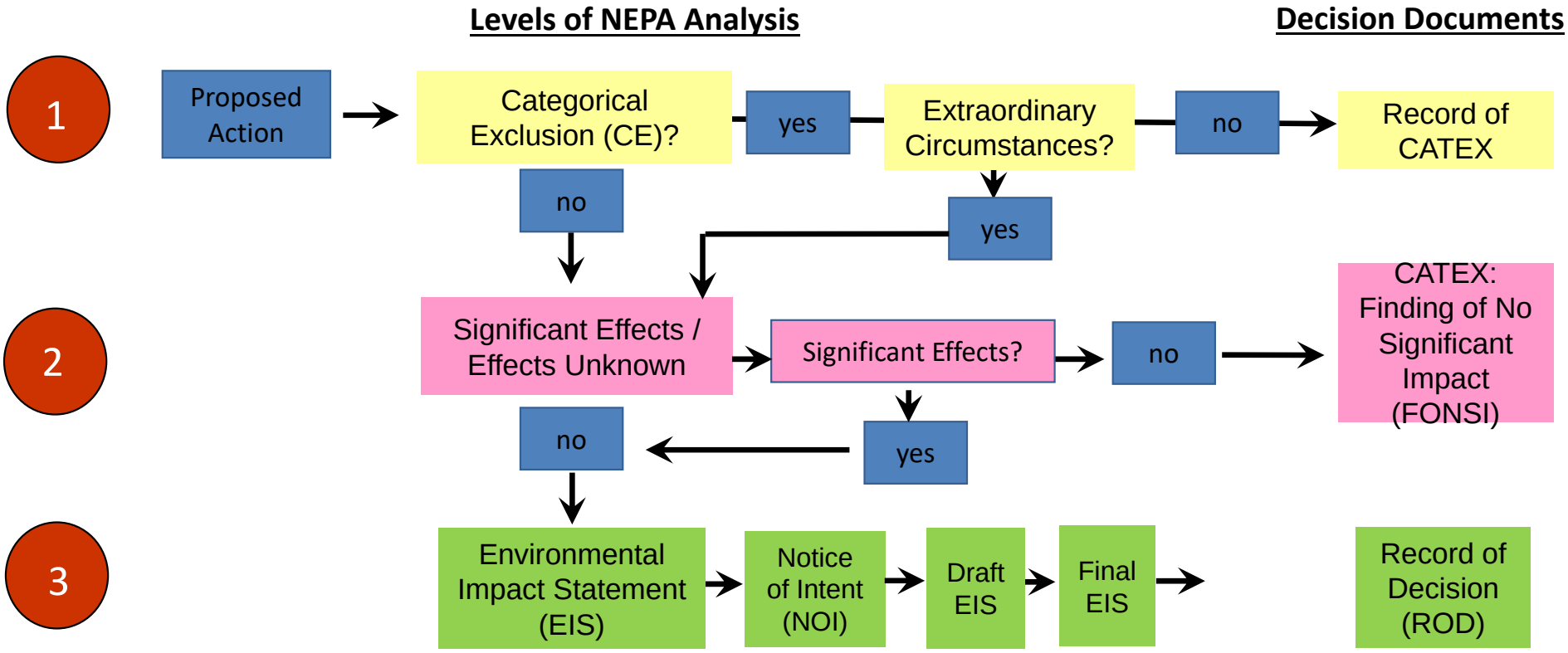
Law	Agency	Product	Agency Timeline	Drivers
ESA	NMFS (Marine) USFWS (Terrestrial)	Biological Opinion (BO)	135 days (min)	*"may affect" protected species or critical habitat*
MMPA	NMFS	Letter of Authorization (LOA)	14 mos. (min)	*likely to result in marine mammal takes*
CZMA	State Coastal Authority	Consistency Determination	90 days	*likely to be coastal effects*



Overview of the NEPA Review Process

The NEPA outline three levels of NEPA review ((42 USC 4336(b)(2)):

1. Categorical Exclusions (CATEX or CE)
2. Environmental Assessments (EA)
3. Environmental Impact Statements (EIS)



San Diego Broadway Complex Coal. v. U.S. Dept. of Defense., 9th Cir.

- Complex history began in 1986 (appeal involved a 2009 EA and FONSI).
- Redevelopment of a fifteen-acre site for Navy administrative facilities on federally-owned land leased to a developer who in return will construct a Navy building.



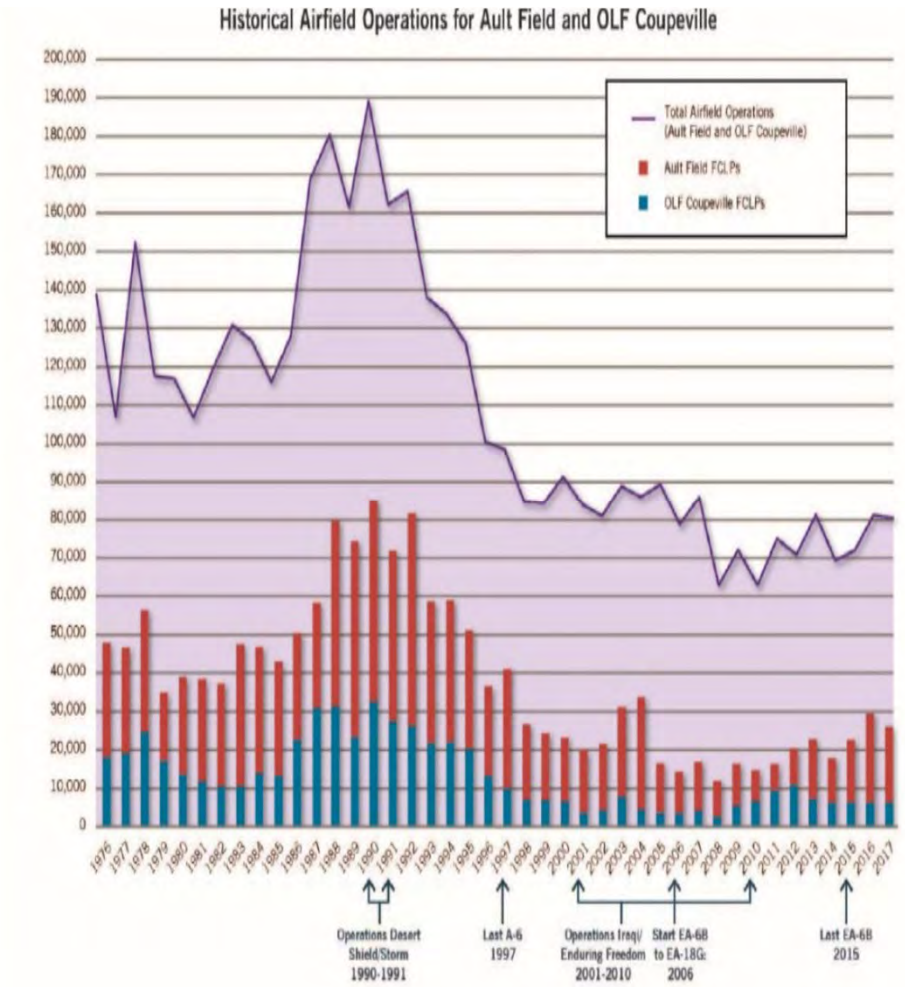
San Diego Broadway, cont'd

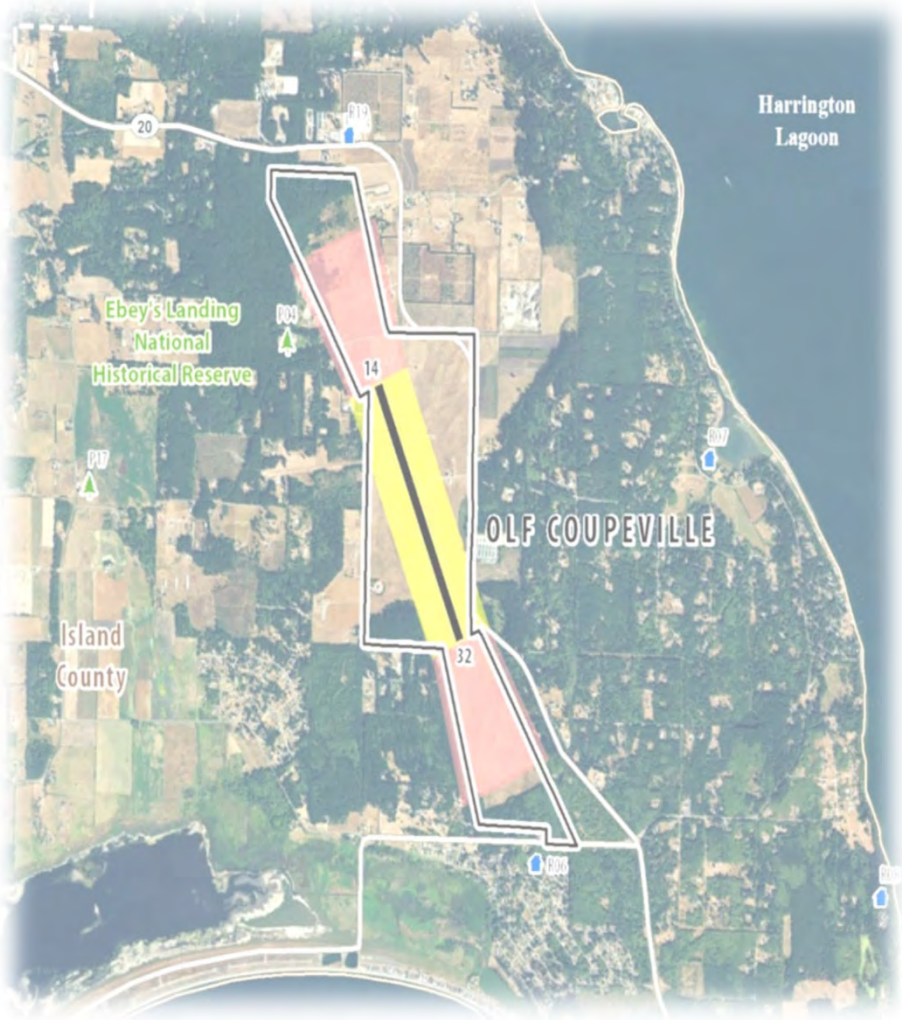
- The Navy held three public meetings on the Draft EA, received numerous public comments related to the threat of terrorism, responded to the comments and modified the EA to address the public's concerns.
- The Ninth Circuit Court said that such constructive exchanges with the public demonstrate the "informed public participation" that NEPA requires.
- The court concluded that the Navy took a hard look at the environmental consequences of potential terrorist attacks and found the risk of terrorist attack assessment adequate when the agency's EA clearly explained the Anti-Terrorism Force Protection requirements provided the UFC specifications.
- "[A]n agency . . . must have discretion to rely on the reasonable opinions of its own qualified experts even if…a court might find contrary views more persuasive

Growler Litigation

- NASWI includes main base (Ault Field) and Outlying Landing Field (OLF) Coupeville
  - Used for field carrier landing practice (FCLP) for decades
  - Very little off-installation acreage owned by Navy
  - Navy operations vary over time, making affirmative acquisition (MILCON) politically and fiscally unmanageable
- 2018 FEIS and March 2019 Record of Decision (ROD) increased Growler operations at NASWI
  - Added 36 Growler aircraft
  - 80% of FCLPs to be performed at OLF Coupeville
- After ROD is issued:
  - Navy is sued under NEPA and NHPA
  - Navy is sued in 4 related takings lawsuit, Issue is NOISE impacts

Growler NEPA Litigation





Growler NEPA Litigation

- Washington State & COER v. Navy (W.D. Washington)
  - July 2019: 2 lawsuits filed, NEPA, NHPA allegations, cases are consolidated
  - Feb 2020: COER files motion for preliminary injunction to halt flights
  - Mar 2021: Court denies COER's PI motion
  - 2021: Parties file cross motions for summary judgment
  - Oct 2021: Magistrate holds hearing on MSJs
  - Dec 2021: Magistrate issues Report & Recommendation on MSJ
  - Aug 2022: District Court adopts Magistrate's recommendation in its entirety

Growler NEPA Litigation cont.

- District Court finds Navy violated NEPA by:
  - failing to disclose the basis for greenhouse gas emissions calculations
  - failing to quantify the impact of noise from increased operations on classroom learning
  - failing to take a hard look at species-specific noise impacts on birds
  - failing to give more consideration to an alternative location (El Centro)
- Court finds in Navy's favor on all other NEPA and NHPA issues
- Sep 2023: Court remands matter without vacatur, allowing Navy to continue FCLPs consistent with the ROD
- Aug 2024: Court amends order on remedy after motions for reconsideration; requires Navy to comply with Court's Aug 2022 Order to re-analyze; and must file status reports every 90 days.

Growler NEPA Litigation

- Fall 2023: Navy begins preparation of an amended analysis of the 2018 Growler FEIS to address the four areas of deficiency identified in the Court's order
  - Mar 2025: Navy publishes Draft Amended Analysis to the FEIS for public comment
  - Apr 2025: Based on public requests, public comment period extended to 13 May 2025
  - Jun-Dec 2025: State provided Navy with additional information re bird species that was not publicly available; Navy finalized the amended analysis to file ahead of the 26 Dec 2025 filing deadline

Growler Takings Litigation

- Arnold et al v. United States (Court of Federal Claims)
  - Sep 2019: Landowners, representing 102 properties, sue Navy claiming noise increase from additional FCLPs at OLF Coupeville decreased the value of their homes
  - Mar 2022: Plaintiffs file motion for class certification and Navy opposes
  - Jun 2023: Court denies the motion for class certification
  - Feb 2024: Parties agree to 18 “bellwether” claimants for purposes of fact and expert discovery; bellwethers chosen because their properties are located at various distances from OLF Coupeville
  - Oct 2024: Fact discovery for bellwether claimants completed
  - Apr 2025: Expert discovery for bellwether claimants completed

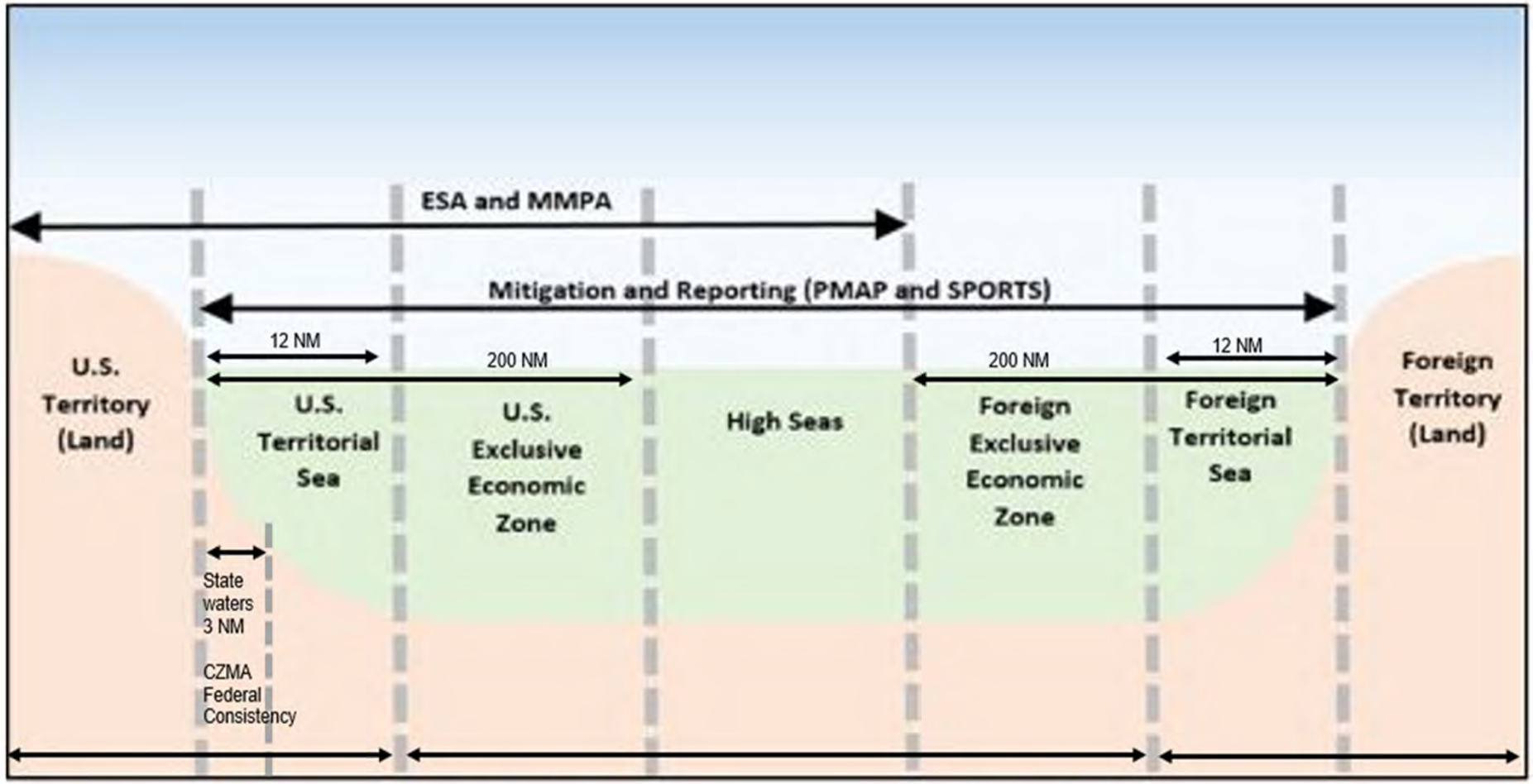
Growler Takings Litigation

- April 2025: Navy files motion for partial summary judgment
- September 2025: Court denies motion for partial summary judgment
- March 2026: Two-week trial scheduled for bellwether claimants

What about Environmental Planning Outside US and Its Territories?

- NEPA does not apply OCONUS except within US territories (e.g. Guam, Puerto Rico, etc.) and their territorial seas within 12-nautical miles of the shoreline
- Executive Order 12114, Environmental Effects Abroad, governs environmental planning abroad
- DoW implementing regulation is 32 CFR 187, Environmental Effects Abroad of Major Department of Defense Actions
- Requires a “NEPA-like analysis” for actions that have potential to significantly harm environment outside US

Overseas At-sea Planning



NEPA:	EO 12114:	EO 12114:
CATEX / EA / EIS	Overseas EA Overseas EIS	Negative Decision / Environmental Review / Environmental Study

ESA = Endangered Species Act MMPA = Marine Mammal Protection Act

Overview

- National Environmental Policy Act (NEPA)
- ESOH Laws and Regulations
- DoW Polices and Requirements

Environment, Safety, and Occupational Health (ESOH)

- An acronym that refers to the combination of disciplines that encompass the processes and approaches for addressing laws, regulations, DoW policies, environmental compliance and hazards associated with environmental impacts, system safety (e.g., platforms, systems, system-of-systems, weapons, explosives, software, ordnance, combat systems), occupational safety and health, hazardous materials management, and pollution prevention

ESOH Requirements

- Establish the methods and mechanisms of a process for compliance
  - Local, state, or Federal Agencies may impose civil fines, penalties, or compliance orders resulting in program delays if the compliance process is not properly planned and executed
- Mandate legal compliance requirements and processes
  - ***Laws may impose criminal and/or civil penalties*** for lack of compliance, which may or may not be applicable to Federal Agencies and individuals
  - Compliance responsibility assigned primarily to the facility and installation managers and maintainers
- For acquisition programs, the PM is responsible for considering ESOH requirements and their effects throughout the system life-cycle when making design decisions

ESOH impacts must be considered as an integral part of any acquisition systems engineering effort

ESOH Law Summary

- AIR POLLUTION CONTROL
  - Clean Air Act (CAA), 42 U.S.C. §§7401-7671q
- HAZARDOUS WASTE
  - Resource Conservation & Recovery Act (RCRA), 42 U.S.C. §§6901-6992k
  - Comprehensive Environmental Response, Compensation & Liability Act (CERCLA), 42 U.S.C. §§ 9601-9675
- WATER POLLUTION CONTROL
  - Federal Water Pollution Control Act (Clean Water Act), 33 U.S.C. §§ 1251-1387
- CHEMICAL PRODUCTION/TRACKING
  - Toxic Substance Control Act (TSCA), 15 U.S.C. §§ 2601-2692
- CHEMICAL EMERGENCY PLANNING & COMMUNITY RIGHT-TO-KNOW
  - Emergency Planning and Community Right-to-Know Act (EPCRA), 42 U.S.C. §§ 11001 - 11050
- ENDANGERED SPECIES PROTECTION
  - Endangered Species Act (ESA) 16 U.S.C. §§1531-1544
  - Marine Mammal Protection Act (MMPA) 16 U.S.C. § 1371-1423h
- WORKPLACE/EMPLOYEE SAFETY
  - Occupational Safety & Health Act (OSH Act), 29 U.S.C. §§ 651-678
- ENVIRONMENTAL POLICY/PLANNING
  - National Environmental Policy Act (NEPA), 42 U.S.C. §§ 4321-4370h
- CULTURAL RESOURCES
  - National Historic Preservation Act, 54 U.S.C. §300101 et seq.

Clean Air Act (CAA)

- Establishes national air quality standards for public's health
- Amended in 1990
- States are responsible for attaining standards
  - State Implementation Plans - govern stationary sources and mobile sources
  - Permits (i.e., boiler operations, paint booths, smoke stack emissions, etc.)
  - Reporting
  - Operational impacts
- EPA issues standards to control emissions from aerospace manufacturing & rework and shipbuilding & repair
  - Establishes best technologies for cleaning, painting, etc.
  - Generally, emission reduction through compliant materials and control devices



CAA protects air by reducing or eliminating air pollutants through regulation

Clean Water Act (CWA)

- Major Federal legislation to control water pollution
- Requires National Pollutant Discharge Elimination System (NPDES) permits program focusing on two specific areas which discharge into “waters of the U.S.”
  - Point sources
  - Non-point sources
- Non-point source pollution (biggest challenge)
- Point source examples:
  - Ships
  - Industrial facilities
- Non-point source examples:
  - Highways
  - Parking lots



NRDC v. Dept of the Navy

- NSWC Dahlgren testing range on the Potomac River
  - Activities include the use of ordnance (small- and large-caliber guns) and chemical and biological simulants (non-toxic substances used to mimic dangerous agents)
  - Natural Resources Defense Council (NRDC) and Potomac Riverkeeper Network (PRKN) filed suit against Navy in the District of Maryland on 21 June 2023 (NRDC v. Navy)
  - CWA requires NPDES permit for discharges of pollutants into "waters of the United States."
  - DOD policy not to apply for NPDES permits for operational military ranges
  - Consent decree was entered into in January 2024, Navy applied for NPDES permit

NRDC v. Dept of the Navy

- Permit
  - Navy applied in January 2024 per Consent Decree
  - Pending with Maryland Department of the Environment
- Legislative Proposal
  - Amend CWA definition of pollutant to exclude “training or testing objects that are used by a military department during range activities at an operational range”
    - Submitted to DOW for FY27 NDAA
    - After a Deputies Legislative Review Panel in October, the Leg Prop was forwarded to the Deputy Secretary of War without comments or objections from the OSW OGC
- Presidential Exemption? (CWA § 313)
  - 1-year or 3-year relief from regulation for military equipment/activities
  - Used only once before

SCOTUS Curtails Wetlands Protection Under CWA

- ***Sackett v EPA*** – This dispute involved land a federal appeals court described as a "soggy residential lot" that the landowners wanted to backfill with dirt and rocks so that they could build a house on it

- The lot is near a tributary that feeds into a creek, which itself feeds into Priest Lake, a sufficiently large body of water in Idaho that no one really questions if it is subject to the Clean Water Act

- SCOTUS narrowed CWA jurisdiction to extend only to wetlands that are "as a practical matter indistinguishable from waters of the United States" because they have a "continuous surface connection" with a larger body of water, "making it difficult to determine where the 'water' ends and the 'wetland' begins"

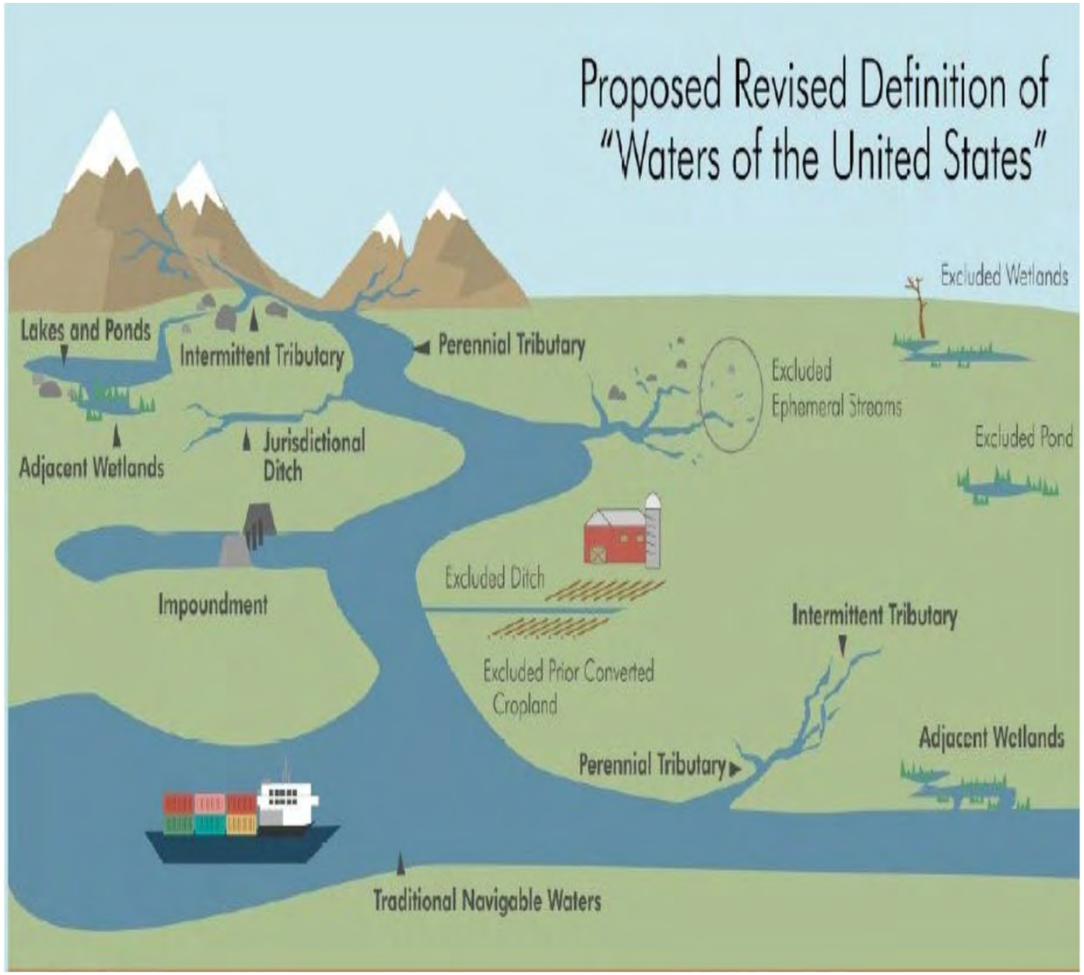
Revisiting Sackett Decision

- EPA filed amended complaint in U.S. v. Chameleon LLC
- Complaint details to meet the *Sackett* standard:
  - 3 Wetlands "continuous surface connection" to tributaries connecting to Creeks, and ultimately a River, a traditional navigable water.
  - EPA relied on USGS StreamStats mapping layers, hydrologic data, elevation models, to support its claim that tributaries are permanent & connected.
  - Court cautioned that mapping and modeling alone are not dispositive and must be supported by additional evidence.
- Case remains a critical test of *Sackett* in disputes over intermittent vs. permanent tributaries and surface connectivity.



WoTUS New Definition

- EPA & Army preparing new “Revised
- Definition of the Waters of the United States (WoTUS) Rule”
- Draft released 20 Nov 2025 – comments due 5 Jan 2026.
- Sackett (2023): Limited CWA jurisdiction to wetlands with continuous surface connection; rejected “significant nexus.”
- Nov 2025 Proposal: Adopts *Sackett* but codifies extra exclusions (groundwater, ephemeral streams, artificial features).
- Impact: *Sackett* set the constitutional floor; proposal tightens definitions and makes implied exclusions explicit



Resource Conservation and Recovery Act (RCRA)

- Major federal legislation on hazardous waste management, passed in 1976
  - Address growing problem of industrial and municipal waste
  - Set national goals for protecting human health and the environment, conserving energy and natural resources, reducing amount of waste generated, and managing waste in and environmentally-sound manner
- Cradle to grave control of hazardous waste
  - Regulates the generation, management, storage, transport and disposal
  - Manifests created by generator
  - Permits for treatment, storage and disposal
  - ***Applies to all shore activities***
- "Aberdeen Three"
  - First time federal employees were tried and convicted in violation of RCRA
  - Improperly storing, treating, and disposing of hazardous waste



Comprehensive Environmental Response Compensation and Liability Act (CERCLA)

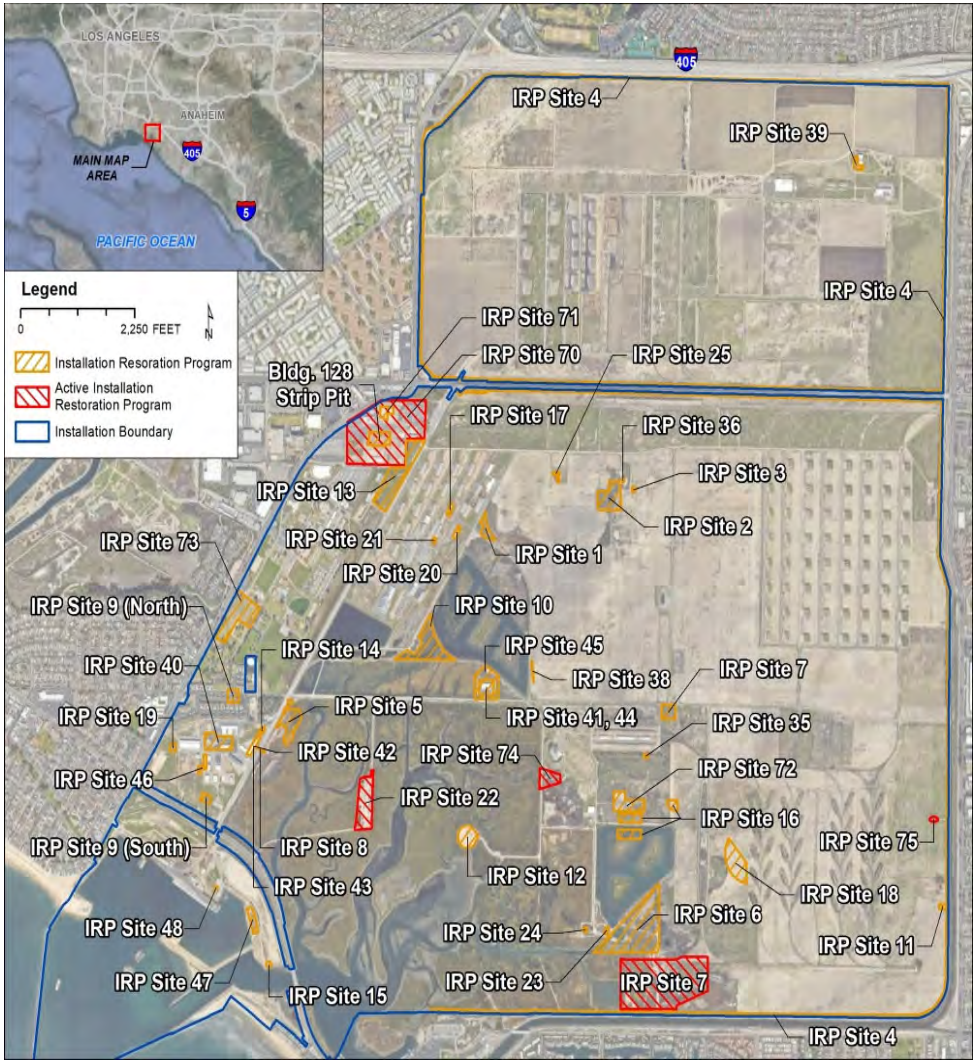
- Authorizes federal agency action to respond to the release or threat of release
- Emphasis on cleanup of old/inactive hazardous substance sites
  - Assigned cleanup costs to responsible parties
- Reporting of releases of CERCLA hazardous substances into environment required
  - Report to National Response Center
- Does not cover spills of petroleum, oils, and lubricants (covered by other programs)
- How many bases are superfund sites?



*CERCLA is commonly known as **SUPERFUND***

United States v. The Boeing Company

- Naval Weapons Station Seal Beach
  - From 1962-1973, NASA and North American Aviation (NAA), a predecessor of Boeing, assembled and tested Stage II of the Saturn V Rocket (S-II) at Site 70
  - Site 70 - 35 acres in NW corner of NWS Seal Beach
  - NASA licensed Site from Navy
  - During this period, NAA used TCE as a cleaning solution/solvent for rocket engines
  - In 1973, NAA/NASA returned control of Site 70 to Navy



United States v. The Boeing Company

- A TCE plume was discovered by Navy in 1990s. A TCE plume is an underground, spreading area of groundwater contaminated with Trichloroethylene (TCE), a toxic, colorless industrial degreaser.
- Navy initiated remedial actions and incurred approximately $32 million in past and projected cleanup costs to date. (Expectation for monitoring until 2071.)
- In 2022, the United States sued NAA (now Boeing) to recover response costs per CERCLA § 107.
- Boeing/NAA, NASA, Navy all PRPs (Potentially Responsible Parties)

CERCLA: Operational Control of the Site

- Boeing argues that NASA supervised and directed operations at the site to such an extent as to transfer liability from Boeing to NASA (i.e. the United States)
  - • In a technical work statement, NASA listed solvents that could be used for cleaning, TCE was one of the potential listed solvents
- Government position is that NASA supervision only oversight of the contract.
- • NAA controlled operations and disposal of any waste material generated at the Site
- • No specific waste disposal processes mandated at Seal Beach during NAA occupancy

Contract Argument

- NASA and NAA entered into a series of contracts concerning the assembly and testing of the S-II and the use of government facilities
- **Facilities contract:**
  - • NASA agreed to indemnify or hold harmless NAA for damage to facilities, except in specific instances, such as when NAA was required to procure and maintain insurance
  - • Contract did not require NAA to obtain insurance for damage to facilities
  - • Boeing argues, since NAA was not required to have insurance for damage to facilities, environmental damage should be included in the indemnity clause
- **Boeing** argues that the contract assigns risk of facility damage to NASA
- **Government position:**
  - • Contractual agreements are not defenses to liability under CERCLA
  - • Contract pre-dates CERCLA by 20+ years

United States v. Boeing – Final Act

- 25 April 2023 – Court finds in Government's favor on a Motion to Dismiss
  - Finds that the contract hold-harmless clause cannot shield contractors from CERCLA liability in suits brought by the Government
- Expert discovery pending completion
- Motions for Summary Judgment (MSJs) have not been filed
- Trial set to start on 24 August 2026

Toxic Substance Control Act (TSCA)

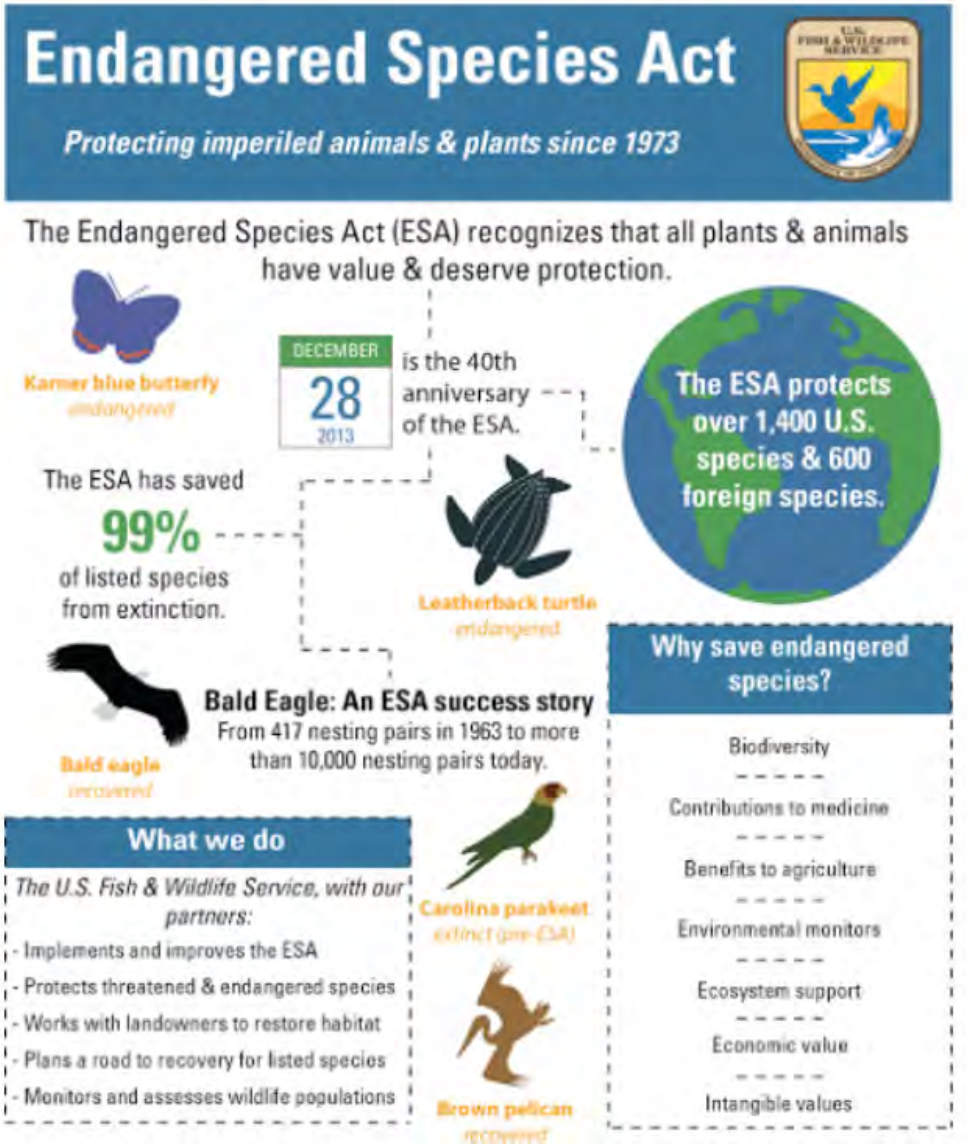
- Gives the EPA the ability to track the 75,000 industrial chemicals currently produced or imported into the United States. Amended June 2016 to provide EPA with easier way to list and ban chemicals based on risk
  - Can require reporting or testing of those that may pose an environmental or human-health hazard
  - Can ban the manufacture and import of those chemicals that pose an unreasonable risk
- Of concern to DoN and regulated by TSCA:
  - PCBs (Title I)
  - Lead based paint (Title IV)
  - Asbestos (Title II)
  - Radon (Title III)



PCBs: Polychlorinated biphenyls

Endangered Species Act (ESA)

- Law provides broad protections for species of fish, wildlife, and plants that are listed as threatened or endangered - prohibits “taking” of species
- Enacted in 1973 – concern over the decline of various species of fish, wildlife, and plants due to lack of concern and conservation – national symbol going extinct
- Primary purpose – to conserve ecosystems that support endangered and threatened species
- Federal agency duty to consult and affirmatively conserve
- Consultation with FWS/NMFS to ensure compliance

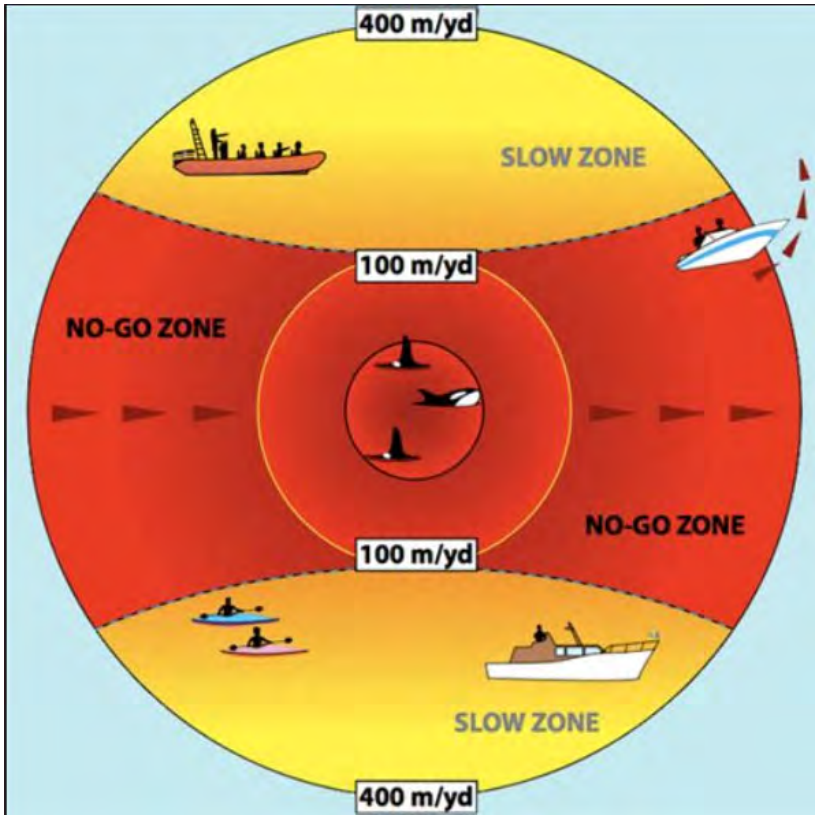


ESA – Proposed Updates

- The U.S. Fish and Wildlife Service and NOAA Fisheries (the Services) jointly proposed revisions to regulations that implement portions of the Endangered Species Act (ESA). Broadly, the rules propose to:
  - Eliminate the "blanket" protections for threatened species so that the regulations permit only species-specific prohibitions
  - Revise the species classification regulations to allow for economic and other considerations and limit the foreseeable future analysis for threatened species determinations
  - Provide a process for exclusions of areas from critical habitat designations, allowing consideration of economic, national security and other relevant impacts
  - Prioritize designation of critical habitat in areas actually occupied by the species and impose a higher standard for critical habitat designation of unoccupied areas
  - Revise the Section 7 consultation process to clarify the scope of review, applying principles from the U.S. Supreme Court's decision in *Seven County Infrastructure Coalition v. Eagle County*[1], and eliminate offset provisions for reasonable and prudent measures

Marine Mammal Protection Act (MMPA)

- Enacted in 1972 – concern over the decline of marine mammal numbers due to human activity
- Primary purpose – to maintain the health and stability of the marine ecosystem
- Some activities often require permission in form of LOA or IHA to “take” or “harass” marine mammals from NOAA as well as NEPA analysis
  - Sonar
  - Sea Trials
  - Weapon Firings



LOA: Letter of Authorization
IHA: Incidental Harassment Authorization
NOAA: National Oceanic and Atmosphere Administration

Cultural Resources

- Few, if any, DoW facilities occupy land devoid of historical interest or cultural resources
- All facilities must comply with a wide range of laws and regulations in this area
- National Historic Preservation Act (NHPA) requires Federal Agency to assess impacts on historic property prior to undertaking action which may affect historic characteristics
- NHPA requires consultation with state and/or Native American tribes for undertakings which may affect historic properties



Building at Pearl Harbor Naval Shipyard is historic. Challenge is modern shipyards, preservation of historic resources

Emergency Planning and Community Right-to-Know Act (EPCRA)

- Requires immediate notification of state and local emergency response planners and the facility's major claimant of releases of hazardous substances over threshold levels
- Provides information to public about potential hazards associated with toxic chemical releases
- Encourages emergency planning at local levels
- Define facility fence line and primary mission
  - Fence line owner (Base Commander) files required EPCRA reports for entire facility
- Releases that result in exposure to personnel solely within facility boundaries do not require notifying state/local agencies



Workplace and Employee Safety

- Occupational Safety & Health Act (OSH Act), 29 U.S.C. §§ 651-678
  - OSHA is common reference
- Addresses worker health and safety
- Federal Government complies with this law by
  - Requirement to provide healthful and safe places and conditions of employment consistent with standards in 29 U.S.C. §655
  - EO 12196 All Federal Agencies must comply with OSHA standards unless Secretary of Labor approves an alternate standard
- "Uniquely military equipment, systems, and operations" - ***not*** covered under OSHA
  - But DoW workplaces and operations comparable to those of industry in the private sector are covered
- Statute and implementing regulation at 29 CFR Part 1960 cover many different workplaces and operations and contain many record keeping requirements

The Notice of Violation (NOV)

- NOV is a document issued by a Regulator
  - States the nature/extent of the alleged violation and the requirement/law allegedly violated
- Upon receipt of a NOV:
  - Notify chain of command upon receipt
  - Enter into NOVweb (OPNAV 5090.1 Ch. 19)
  - Seek legal advice with environmental counsel ***quickly*** regarding response if needed
  - Investigate and evaluate to extent possible
  - Know who your RECs are

Receipt of NOV

- Respond in consultation with counsel
  - Ask for extension if more time needed to evaluate case--don't let regulators exert pressure for immediate responses and meetings
- Dispute inaccuracies or misstatements
- State legal defenses and factual corrections
- Request withdrawal of non-violations
- Supply documentation to support factual and legal assertions
- Take actions directed if they will not impact health, safety, or environment
- Inform regulators of corrective actions taken
- Do not admit to any violations

Receipt of NOV (cont.)

- Supply documentation to support factual and legal assertions
- Take actions directed if they will not impact health, safety, or environment
- Inform regulators of corrective actions taken
- Do not admit to any violations

Overview

- National Environmental Policy Act (NEPA)
- ESOH Laws and Regulations
- DoW Polices and Requirements

DoW Policy

- DoD 5000 series – applies to all ACATs:
  - Prevent, mitigate, or remediate environmental damage caused by acquisition programs
  - Address environmental issues early in development process (throughout life-cycle sustainment)
  - Evaluate alternatives to reduce or eliminate all forms of environmental impact during design, manufacture, test, operation and disposal, at the source whenever feasible
- All DoW personnel (civilian and military), tenants, and Contractors shall comply with all applicable Federal, state, local/internal environmental policies, regulations, and requirements

We are all required to comply with Federal, state, and local environmental laws

Defense Acquisition Program Requirements

- Program Managers must ensure the system can be:
  - produced
  - tested
  - fielded
  - operated
  - trained
  - maintained
  - disposed of

  in compliance with Environment, Safety, and Occupational Health (ESOH) laws, regulations and policy (collectively termed ESOH requirements)



The goal is to safeguard the environment, reduce accidents, and protect human health

Programmatic ESOH Evaluation (PESHE)

- PM must document the program process, the schedule for completing National Environmental Policy Act (NEPA) documentation, and the status of ESOH risk management in a Programmatic ESOH Evaluation (PESHE)
  - PESHE is a management and reporting tool for the PM
  - ***Required for ALL ACAT programs during milestone review***
  - Requires analyses in the following areas:
    - Environmental Compliance
    - System Safety and Health
    - Hazardous Materials Management
    - Pollution Prevention Management
    - National Environmental Policy Act (NEPA)

Summary



- What environmental-related document must be updated by program officers before every milestone review?
- Which environmental law allows for discharge into the waters of the US?
- What procedural law established the process for environment review for “major Federal action”?